ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	3rd Commission Meeting
DATE:	24 November, 2020
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Review Committees and member constitution - PPS	The Commission reviewed all the Standing Committees of the ACC, which were established to either meet statutory requirement or enhance effectiveness and credibility of various internal functions. Alongside, the Commission also reviewed the proposed revisions in the member compositions, revised in consultation with Department/Division/Services concerned. Following were key decisions of the Commission: 1) Established Prevention Advisory Committee, Investigation Review Committee and Media Crisis Management Team as recommended by the Review of Institution Development and Performance. 2) Revised the Terms of Reference (ToR) and member composition of the Screening Committee. The Screening Committee shall screen and sequence the complaints qualified for investigation in the order of its priority defined by the Commission and share with the DoI. The Committee will not have to submit its recommendations to the Commission for endorsement. The Committee should meet as and when DoI completes investigation of cases assigned. However, the Commission shall continue to assign the complaints that warrant rapid response or immediate action directly to DoI for investigation. 3) Directed to broaden the scope of Directors' Forum by also including Heads of TSD, LD and SECT in the Forum. In addition to existing focus on departmental level matters, the Forum may recommend changes/proposals to the Commission related to institutional matters. 4) Directed Department/Division/Services concerned to accordingly revise the scope, ToR or member composition in their respective guidelines/SoP/Manual, if any changes have been effected by above revisions. 5) On the specific committees and its membership, following were decided: **Complaints Evaluation Committee (CEC)** i) Director, DoI (Chairperson); ii) Director, DoPS (Alternate Chairperson); iii) Leki Dendup, Chief IPO, DoI *(Alternate to Director, DoI);* iv) Chief, PD, DoPE *(Alternate member: Chief, ED, DoPE);* v) Kin Dorji, Head, TSD *(Alternate member:Phuntsho Namgay, IPO, TSD)*;

#	AGENDA	DECISIONS
		vi) Kelden Jamtsho, Head, LD *(Alternate member: Sonam Wangdi, Legal Officer, LD)*; vii) Chief CMD, DoPS (Member Secretary); and viii) Officer concerned from CMD apprising the complaints.
		Investigation Review Committee (IRC) i) Director, DoI (Chairperson); ii) Chiefs of all Branches, DoI; iii) Respective Legal Representative of the case concerned, LD; iv) Representative/s from other Departments/Divisions, on a case by case basis; v) Chief of the Branch concerned, DoI (Member Secretary); vi) Commissioner In-charge (Observer); and vii) Officer/s concerned of the Investigation Team presenting the case.
		Screening Committee i) Director, DoPS (Chairperson); ii) Director, DoPE; iii) Director, DoI; and iv) Chief, CMD, DoPS (Member Secretary). Membership of Director DoI was to ensure timely assignment of cases.
		Disproportionate Asset (DA) Committee i) Director, DoPE (Chairperson); ii) Ugyen Tshering, Chief CMO, DoPS; iii) Tenzin Gyphel, Chief IPO, DoI; iv) Tandin Om, Legal Officer, LD; v) Phuntsho Namgay, IPO, TSD; and **vi)** Head, ADMD, DoPE (Member Secretary).
		Human Resource Committee (HRC) i) Commissioner In-charge (A Karma Rinzin) (Chairperson); ii) Director, DoI; iii) Director, DoPE; iv) Director, DoPS; v) Head of TSD; vi) Head, SS; vii) Head, LD; viii) Tashi Wangmo, Dy. Chief IPO, ADMD, DoPE; and ix) HRO, HRS, SS (Member Secretary). Considering the gender representation in decision making body and to render counselling services, included Tashi Wangmo in the HRC. The Commission directed the HRC members to consult & discuss adequately within the respective Department/Division/Services in relation to agenda/s for well representation of views/recommendations in the meeting. Directed Secretariat Service and HRC to review and institute Moderation Exercise or any other effective system to enhance performance management and promote principles of transparency & accountability.

#	AGENDA	DECISIONS
		Finance Committee i) Commissioner In-charge (Jamtsho) (Chairperson); ii) Director, DoPS; iii) Director, DoPE; iv) Director, DoI; v) Head, TSD; vi) Head, LD; vii) Head, SS; viii) Head, PPS, SS; and ix) Head, Accounts Section, SS (Member Secretary).
		Manuals/ Guidelines/ SoPs Review Committee i) Chairperson (Chairperson); ii) Commissioner (Jamtsho); iii) Commissioner (A Karma Rinzin); iv) Kin Dorji, Specialist; v) Head, LD, vi) Sherab Tharchen, Legal Officer, LD; vii) Head of the Department/Division/Services concerned proposing the draft; and viii) Head, PPS (Member Secretary).
		Tender Committee i) Commissioner In-charge (Jamtsho) (Chairperson); ii) Jigme Choden, Chief IPO, DoI; iii) Tashi Wangmo, Dy. Chief IPO, ADMD, DoPE; iv) Yeshi Dorji, Legal Officer, FDD, DoPS; v) Sonam Tshering, Legal Officer, LD; vi) Rinchen Namgay, Planning Officer, PPS, SS; and vii) Ugyen Penjor, Head SS (Member Secretary).
		Gift Administration Committee (GAC) i) Kinley Dorji, Sr. IPO, PD, DoPE (Chairperson); ii) Ugyen Penjor, Head SS; iii) Kinley Choki, Legal Officer, LD; and iv) Karma Wangmo, PA (Gift Disclosure Administrator).
		Management Committee for Staff Welfare Scheme i) Ugyen Penjor, Head SS (Chairperson); ii) Head, Accounts Section, SS (Treasurer); and iii) Karma Wangmo, PA (Executive Secretary).
		Project Steering Committee for the construction of the ACC office building in Phuntsholing i) Commissioner In-charge (Jamtsho) (Chairperson); ii) Director, DoPS; iii) Director, DoPE; iv) Director, DoI; v) Head, SS; and vi) Kencho Namgay, Sr. Accounts Officer, SS (Member Secretary).

#	AGENDA	DECISIONS
		ACC's Motivation and Social Security Scheme Committee i) Chairperson (Chairperson; ii) Head of Office of Performance Management, the Office of the Gyalpoi Zimpon; iii) Director, DoI; iv) Director, DoPE; v) Director, DoPS; vi) Head, TSD; vii) Head, LD; and viii) Head, SS (Member Secretary). Decided that the Committee shall lead the conceptualization/design phase, in close consultation and direction of the Commission. Further, one Commissioner shall take lead during operational/ implementation phase.
		Prevention Advisory Committee i) Director, DoPE (Chairperson); ii) Leki Dendup, Chief IPO, DoI; iii) Chief RD, DoPE; iv) Head, LD; v) Head, PPS, SS; and vi) Chief PD, DoPE (Member Secretary).
		Media management Team i) Media Spokesperson, (Commissioner Jamtsho) (Chairperson) ii) Commissioner In-charge for DoI (A Karma Rinzin- Alternate Media Spokesperson); iii) Director DoI; iv) Head, LD; and v) Information and Media Officer, PPS, SS (Member Secretary). The Chairperson shall be involved fully with the Team during any media crisis.
		In general, members for various committees were assigned based on respective designation/portfolio while some were based on individual's expertise/experience. It was noted that opportunities for other staff should be provided by including their participation in term-based task/assignments. 6) Other decisions were as follows: - The Commission decided to revisit the Committees and its member composition after one year, along with Commission's portfolios decided in the 1st Commission meeting. - Directed PPS to develop general guides/ToR that is common for all the Committees. - Directed PPS to coordinate sensitization and review (where required) of Guidelines/Manuals/SOP to the Commission.
2	Review the proposal to upgrade/revamp the ACC website – PPS	The Commission endorsed the proposal to revamp the existing website. Directed IMO and ICT to ensure that the website is well-designed (including aesthetics) and updated with informative contents. The website should target to instigate change of thoughts in the viewers against corruption as well as ACC's perceptions in the public.

Dekr.

#	AGENDA	DECISIONS
		Further, the Commission directed IMO to review and submit proposal if there is any requirement for technical and financial assistances to develop the website.
3	Invitation to virtual 24th Steering Group Meeting of ADB/OECD Anti-Corruption Initiative for the Asia and Pacific – PPS	The nominations to be decided in the next meeting. The Commission declined the invitation to volunteer sharing of ACC's major achievement for the year 2020, considering transition period and activities affected by COVID-19 pandemic. Encouraged all the ACC staff and in particular staff from the LD, DoI, TSD, and Media Unit, to attend the Webinar on '*Leveraging open source intelligence, whistleblower protection and reporting, and investigative journalism to combat corruption in times of crisis*' on 18 December 2020.
4	Review ICAC, Mauritius' request to exchange knowledge and experiences of AD administration and management – PPS	The Commission accepted Independent Commission Against Corruption (ICAC) of Mauritius' request to share the ACC's experience and reference materials on Asset Declaration. Directed Director DoPE and ADMD to review and share the ACC's knowledge and information on a need-to-share basis, at an earliest convenient time of the Department. Directed PPS to seek an official letter from ICAC and a political clearance from the Ministry of Foreign Affairs.
5	Any other: The Commission informed on some of the follow-up works of the courtesy call-on and meetings with key leaders and agencies: 1. Any change in priorities of the Commission to be revised and incorporated during the Mid-Term Review of the 12th FYP. 2. Sensitize Commission on mandatory indicators related to 'corruption reduced' in APA and APT of agencies. 3. Develop and submit a comprehensive proposal to HPM to secure support, specifically for specialized HRD programs. 4. Write letter to the Judiciary for their nomination to National Integrity Committee (NIC) of the NIACS. 5. Present the NIA findings and e-learning program on ethics & integrity to the RCSC Commission and staff for their follow-up support/action.	

– absent –

Commissioner

Commissioner

Chairperson